officers is 13 per cent, below the 15 per cent allocation.

There is also an argument that the judgment undermines the original intent of affirmative action. Sociologist and expert on tribal issues Virginius Xaxa says reservations were meant to address the systemic and historical discrimination faced by SCs and STs, which cannot be adequately captured by economic criteria alone. Xaxa fears that the judgment's focus on subclassification could create fissures within these communities and distract from the broader goal of social justice.

CONTENTIOUS CREAMY LAYER

Keeping the "creamy layer", or the wealthier and more privileged and advanced members of a backward class, out of the reservation benefits has been a contentious issue. Its proponents argue that it prevents the monopolisation of reservation benefits and ensure such benefits reach those genuinely in need. Other SC/ ST activists argue that incorporating an economic criterion into a system meant to address social and historical injustices undermines the original purpose of affirmative action. They assert that social stigma and exclusion persist regardless of economic status, and excluding the creamy layer could neglect these persistent challenges.

Justice B.R. Gavai, one of the judges who authored a separate but concurring opinion with the majority, urged states to create policies to identify and exclude the "creamy layer" from reservation benefits. He suggested extending the creamy layer rule, established in the 1992 *Indira Sawhney vs Union of India* case for the OBCs, to SC/ ST groups. He found support from three other colleagues—Justices Vikram Nath, Pankaj Mithal and Satish Chandra Sharma.

Justice Gavai, the only SC member on the bench, however, clarified that the criteria for identifying the creamy layer among SCs should differ from those for OBCs. As this recommendation was outside the scope of the questions before the court, it remains a judicial opinion without the force of law.

REVIVE ROHINI COMMISSION?

The judgment may also trigger demands for the publication of the Rohini Commission's findings. Constituted in 2017, the four-member commission headed by retired Delhi High Court Chief Justice G. Rohini examined how the 27 per cent reservation for OBCs is being implemented and explored subcategorisation within the OBCs. Critics now feel that the BJP-led central government may utilise the commission's report to consolidate its base among the non-dominant OBC castes.

According to sources, the commission's report, submitted on July 21, 2023, revealed that out of approximately 6,000 OBC castes and communities, only 40 had claimed 50 per cent of the quota for admissions to central educational institutions and civil services recruitment. Just 10 castes dominated a quarter of the 27 per cent OBC quota, while nearly 20 per cent of the OBC communities did not benefit from the quota between 2014 and 2018. The commission reportedly recommended dividing the OBC subcastes in the central list into four groups to ensure a more equitable distribution of reservations. The government has kept the report in cold storage for more than a year.

Indeed, the Supreme Court's 2024 judgment marks a paradigm shift in social justice and affirmative action in the country. However, the path forward demands meticulous planning, robust data collection and a steadfast commitment to equality. The court's decision is an urgent call for a more inclusive society, but its implementation hinges on the state governments' willingness to support the most disadvantaged communities. ■

